

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: June 11, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

#		
100	Berger vs. Mission Viejo Animal Services, 25-01502673	<i>Off-calendar</i>
101	Space Exploration Technologies Corp. vs. Enteshari, 23-01365637	Defendant Amin Enteshari ("Defendant") moves to compel plaintiff Space Exploration Technologies Corp. ("Plaintiff") to serve further responses to Form Interrogatories, Set One, Nos. 3.7, 9.1, 9.2, 12.1, 12.2, 12.3, 12.6, 12.7, 13.1, and 13.2 and for an order granting monetary sanctions.

		No. 3.7 Defendant argues further response to No. 3.7 regarding Plaintiff's licenses or registrations must be compelled because Plaintiff has not provided a complete response and its licenses are directly relevant to its operations, credibility, and potential regulatory compliance issues alleged in this case. In this action, Plaintiff alleges that Defendants obtained stolen property through a fraudulent credit card chargeback scheme. There are no issues regarding Plaintiff's regulatory compliance that are relevant here. Further, Plaintiff's licenses and registrations would not reveal any information regarding its operations that would be relevant here, such as its policies and procedures regarding credit card purchases, shipping and chargebacks. Nor would they bear on Plaintiff's credibility. Therefore, the information sought in No. 3.7 is not relevant or reasonably calculated to lead to the discovery of admissible evidence. No. 9.1 Defendant argues that further response to No. 9.1 is warranted because the response fails to provide the specific information requested regarding the nature, date, and amount of damages claimed and the recipient of each claimed item of damage. Plaintiff argues no further response is warranted because Defendant's use of the generic definition of the term "incident" renders the request unintelligible and, moreover, there is no further information to provide because a comprehensive explanation of Plaintiff's damages has been provided in a detailed spreadsheet. The term "incident" is defined as "the circumstances and events surrounding the alleged accident, injury, or other occurrence or breach of contract giving rise to this action or proceeding." By asking for all damages Plaintiff attributes to the incident, Defendant is plainly asking Plaintiff to provide information regarding all damages at issue in Plaintiff's own pleading. Plaintiff's argument that the interrogatory is unintelligible due to the defined term is rejected. Further, Plaintiff's arguments establish that there is additional information that Plaintiff
--	--	---

		could and should provide in response. While Plaintiff argues that all information available to it has been provided in a spreadsheet, as Defendant points out, the response itself makes no reference to any spreadsheet or other document. Thus, the Court finds a further response to be warranted. No. 9.2 This interrogatory asks Plaintiff to describe each document that supports the damages it claims. In response, Plaintiff listed several categories of documents: "documents showing that the payment information used to fund the purchase of goods that were shipped to Defendants were charged back by the credit card issue and the reasons therefor; shipping and delivery records; order history records; documents showing the share of Starlink kits that are sold directly by Responding Party; documents showing the amounts charged by the investigators, attorneys, and court system for investigating and pursuing Responding Party's claims against Defendants; and sheriffs' incident reports and property receipts." Defendant argues that further response is required because a generic reference to broad classes of documents is insufficient. The Court disagrees. The interrogatory asked Plaintiff to describe each relevant document and by providing the general categories of documents, Plaintiff has adequately identified all documents upon which it relies in support of its claim for damages. Plaintiff is not required to identify each individual document by name. Defendant also argues that the response is insufficient because it does not identify each person who has custody of the documents. However, Plaintiff represents that it has already produced its shipping and delivery records, Sheriff incident reports, property receipts, a spreadsheet with shipping, delivery, and chargeback information, and documents related to investigator fees. Thus, clearly, the identified documents are in the custody of Plaintiff. The Court does not find that compelling a further response to require Plaintiff to state that those documents are
--	--	--

		within its custody, a statement that would provide no probative value, to be warranted. No. 12.1 Defendant argues that a further response to No. 12.1 is warranted because Plaintiff's objection to the term "incident" is without merit. While the Court agrees that the objection is without merit, Plaintiff provided a full and complete response to the interrogatory despite its objection. Thus, the Court finds no further response to be warranted. Nos. 12.2, 12.3, and 12.6 Interrogatory No. 12.2 asks Plaintiff whether anyone on its behalf interviewed any individual concerning the incident and, if so, for the name, address, and telephone number of both the interviewer and the interviewee and the date of the interview. No. 12.3 asks for the same information regarding any written or recorded statement obtained by Plaintiff. No. 12.6 asks for information regarding reports made by any person concerning the incident. In response to Nos. 12.2 and 12.3, Plaintiff stated it would produce the Orange County Sheriff's Incident Report and Plaintiff's internal investigation records, and in response to No. 12.6, Plaintiff stated it would produce nonprivileged writings, all pursuant to Code of Civil Procedure section 2030.230. Defendant argues further responses are required because the documents produced do not "easily reveal all the information requested." However, the Court finds Plaintiff's reliance on section 2030.230, which allows for production of documents from which an answer to an interrogatory may be found if the burden of preparing a summary of the documents would be substantially the same for the propounding and responding parties, to be proper. No. 12.7 In response to this interrogatory regarding whether anyone has inspected the scene of the incident, Plaintiff stated that the interrogatory is inappropriate for the allegations at issue here. As Plaintiff points out, this is not a case where there was one
--	--	--

		single incident. Therefore, there is not one single "scene of the incident" to be inspected. Thus, the Court finds that Plaintiff's objection has merit and no further response is warranted. Nos 13.1 and 13.2 These interrogatories concern whether any surveillance was conducted by Plaintiff or anyone acting on its behalf. Plaintiff's response states that Plaintiff retained an investigator who conducted surveillance of Defendants Ali Enteshari and Amin Enteshari in late 2023 near the Rockrose Way address in Irvine, California and Plaintiff will produce the surveillance videos, which reflect the names and contact information of the investigators and the custodians of any surveillance photographs, along with any nonprivileged written reports. Defendant again argues that Plaintiff's reliance on section 2030.230 is improper. However, the burden of ascertaining the names and contact information of the investigators from the produced surveillance videos and written reports would be substantially the same for both Plaintiff and Defendant. The Court finds that Defendant's arguments against section 2030.230 lack merit and no further responses are warranted. In light of all the above, the Motion to Compel Further Responses to Form Interrogatories is GRANTED as to No. 9.1 and DENIED as to all other disputed interrogatories. Plaintiff shall serve a further response within 15 days. No sanctions. <i>Moving party to give notice.</i>
102	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	Plaintiffs, James Bay Resources Limited and Stephen Shefsky (collectively, "Plaintiffs") move for an order compelling Defendant John Robert Armstrong ("Armstrong") to serve initial, code-compliant responses, without objections, to Form Interrogatories, Set One; Requests for Production of Documents, Set One; Special Interrogatories, Set One; and Requests for Admissions, Set One. Plaintiffs also seek an order that the matters specified in Requests for Admissions, Set One be

		deemed admitted, unless Defendant Armstrong serves verified, code-compliant responses prior to the hearing, as required by Code of Civil Procedure section 2033.280. Plaintiffs additionally seek monetary sanctions against Defendant Armstrong in the amount of \$9,375. The Court notes that the proof of service attached to the motion indicates that the motion was served on Bernard C. Jasper, Esq. of Jasper Law, the attorney for Defendant, Lockett & Horwitz, and on Armstrong as "Defendant in Pro Per." In addition, Plaintiffs' counsel provides that they served Defendant Armstrong with Form Interrogatories, Set One and Requests for Production, Set One on May 23, 2025, as well as Special Interrogatories, Set One and Requests for Admission, Set One, on September 17, 2025. (ROA 165, Declaration of Jeanine Zalduendo, ¶¶ 2-3, Exs. A-D.) The proof of service attached to each discovery set indicates that the discovery was served by e-service on Bernard Jasper, Jasper Law and John Robert Armstrong, Armstrong Law Group. (Ibid.) However, it appears that Armstrong's attorney of record is Lockett & Horwitz. On October 12, 2023, Lockett & Horwitz filed a Notice of Change of Address indicating that it was the attorney for Armstrong, and filed a demurrer and motion to strike on Armstrong's behalf. (ROA 15, 28, 51, 82.) The Answers filed on behalf of Armstrong on December 18, 2024 (ROA 109), and December 27, 2024 (ROA 115), indicate that Armstrong is represented by Lockett & Horwitz. The first page of a pleading identifies "the attorney for the party in whose behalf the paper is presented." (California Rules of Court, rule 2.111(1).) "Whenever a document is required to be served on a party, the service must be made on the party's attorney if the party is represented." (California Rules of Court, rule 1.21(a).) Code of Civil Procedure section 1015 states, in part: "[I]n all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney
--	--	--

		instead of the party, except service of subpoenas, of writs, and other process issued in the suit, and of papers to bring the party into contempt. If the sole attorney for a party is removed or suspended from practice, then the party has no attorney within the meaning of this section." (Code Civ. Proc. § 1015.) The attorney of record for a party may be changed either by mutual consent of the party and attorney filed with the clerk or entered upon the minutes, or by court order upon application of either client or attorney, after notice from one to the other. (Code Civ. Proc. § 284.) It does not appear that Lockett & Horwitz has moved to be relieved as counsel of record, or that a substitution of attorney was filed on behalf of Armstrong. Therefore, neither the instant motion nor the discovery at issue was properly served on Armstrong and the instant motions to compel are DENIED, without prejudice. <i>Plaintiffs to give notice.</i>
103	Novak vs. Andry, 24-01414288	Defendant, Doran Andry ("Defendant"), moves for an order compelling Plaintiff, Hsiuyen Julie Novak ("Plaintiff"), to provide responses to Defendant's Requests for Production, Set One, and awarding sanctions for the reasonable attorneys' fees and costs incurred in bringing this motion in the amount of \$1,675.45. Defendant also moves for an order deeming facts admitted and awarding sanctions in the amount of \$2,075.45 against Plaintiff and Plaintiff's counsel, jointly and severally. "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (California Rules of Court, rule, 3.1300(c).) Here, no proof of service of the subject two motions to compel have been filed. In light of the above and the lack of any opposition, the motions are DENIED, without prejudice. <i>Defendant to give notice.</i>

104	Godwin vs. American Blast Systems, Inc., 26-01553297	The unopposed application of attorney Nicholas Lee to appear pro hac vice on behalf of Defendants American Blast Systems, Inc. and American Blast System Payments LLC is GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40. <i>Moving attorney to give notice.</i>
105	Phelps vs. Hyundai Motor America, 25-01468078	<i>Off-calendar.</i>
106	Knight vs. Volt Management Corp, 24-01382559	<u>Motion to Compel Arbitration</u> Defendant Volt Management Corp.'s ("Volt") motion to compel arbitration of all of Plaintiff Yolanda Knight's claims and to stay the action is DENIED. Agreement to Arbitrate Here, it is undisputed that on August 6, 2021, as part of the onboarding process for her employment with Volt, Plaintiff executed the acknowledgment page of Volt's Employee Guide containing an Arbitration Agreement. (Allen-Garcia Decl. ¶ 9, Ex A.) The Arbitration Agreement provides, in relevant part that: "any disputes arising out of or related to my employment with and/or termination from Volt, my assignment with any Volt client and/or end of such assignment, including privacy claims shall be settled by final and binding arbitration pursuant to the Federal Arbitration Act. I understand and agree that Volt's employees/agents, Volt's clients, and their employees/agents are third-party beneficiaries to this agreement." (Id., Ex. A.) <i>The FAA</i> The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a "liberal federal policy favoring arbitration," and the "fundamental principle that arbitration is a matter of

		contract.” (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339 (“<i>Concepcion</i>”).) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (<i>Concepcion, supra</i>, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) Defendant has demonstrated the existence of a valid arbitration agreement that encompasses all of Plaintiff’s employment-related claims. Plaintiff does not dispute the agreement’s validity or scope but contends her claims fall outside its reach under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”). <i>The EFAA</i> The FAA was amended in 2022 to include what is known as the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act. (See, <i>Doe v. Second Street Corp.</i> (2024) 105 Cal.App.5th 552, 564-565.) One of the goals of the EFAA is to protect the victims of sexual assault and/or sexual harassment from having to arbitrate their
--	--	--

		claims in what could be considered a less fair forum than the courts with a jury of their peers. (<i>Id.</i>, at 565-566.) The EFAA provides: "Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C.A. § 402(a).) The EFAA defines "sexual harassment dispute" to mean "a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law." (9 U.S.C., § 401(4).) California law protects against harassment because of sex, including sexual harassment, gender harassment, and harassment based on pregnancy. (Gov. Code, § 12940(j)(4)(C).) The elements of a sexual harassment claim are: (i) plaintiff belongs to a protected group; (ii) plaintiff was subject to unwelcome sexual harassment; (iii) the harassment complained of was based on sex; (iv) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (v) respondeat superior. (<i>Fisher v. San Pedro Peninsula Hospital</i> (1989) 214 Cal.App.3d 590, 608.) Even "[a] single incident of severe harassment is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive work environment." (Gov. Code, § 12923(b).) "The factors that can be considered in evaluating the totality of the circumstances are: (1) the nature of the unwelcome sexual acts or works (generally, physical touching is
--	--	---

		more offensive than unwelcome verbal abuse); (2) the frequency of the offensive encounters; (3) the total number of days over which all of the offensive conduct occurs; and (4) the context in which the sexually harassing conduct occurred.” (<i>Fisher v. San Pedro Peninsula Hospital</i> (1989) 214 Cal.App.3d 590, 610.) “Harassment” includes but is not limited to: (E) Verbal harassment, e.g., epithets, derogatory comments or slurs on a basis enumerated in the [FEHA]; (F) Physical harassment, e.g., assault, impeding or blocking movement, or any physical interference with normal work or movement, when directed at an individual on a basis enumerated in the Act; (G) Visual forms of harassment, e.g., derogatory posters, cartoons, or drawings on a basis enumerated in the Act; or (H) Sexual favors, e.g., unwanted sexual advances, which condition an employment benefit upon an exchange of sexual favors. [See also section 11034(f)(1).] (Cal. Code Regs., tit. 2, § 11019(b)(2)(A)-(D).) “[T]he prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex.” (<i>Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 277; see also <i>Liu v. Miniso Depot CA, Inc.</i> (2024) 105 Cal.App.5th 791, 796-797 (“<i>Liu</i>”) [sexual harassment based on comments about the plaintiff’s appearance as unattractive and “too skinny,” references to female employees as “little girls,” and that homosexuals were “creepy”]; <i>Landucci v. State Farm Ins. Co.</i> (N.D. Cal. 2014) 65 F.Supp.3d 694, 704-705 [finding excessive micro-managing and criticisms to which plaintiff’s male co-workers were not subject to be harassment].) “[I]t is the disparate treatment of an employee on the basis of sex—not the mere discussion of sex or use of vulgar language—that is the essence of a sexual harassment claim.” (<i>Lyle v. Warner</i>
--	--	---

Brothers Television Productions, supra, 38 Cal.4th at p. 280.)

Applicable Pleading Standard

The Court must first determine whether the plaintiff alleges conduct constituting a sexual harassment dispute, so as to come within the EFAA and then decides whether the EFAA makes the arbitration agreement unenforceable as to the entirety of the pleading's claims. (*Ding v. Structure Therapeutics, Inc.* (N.D. Cal. 2025) 765 F.Supp.3d 897, 899.)

Federal district courts have reached different results as to the appropriate standard. Some have held the EFAA applies only where the plaintiff's sexual harassment related claims are capable of withstanding a motion to dismiss under Federal Rules of Civil Procedure, rule 12(b)(6) (28 U.S.C.). (See, e.g., *Yost v. Everyrealm, Inc.* (S.D.N.Y. 2023) 657 F.Supp.3d 563, 577, 586 [requiring a plaintiff's claim to meet the federal "plausibility" standard articulated in *Bell Atl. Corp. v. Twombly* (2007) 550 U.S. 544, 570 and *Ashcroft v. Iqbal* (2009) 556 U.S. 662, 678 in order to avoid arbitration via the EFAA].)

A claim is plausible when the plaintiff pleads facts that allow the court to draw the reasonable inference that the defendant is liable. (*Ashcroft v. Iqbal* (2009) 556 U.S. 662, 678.) The complaint must "contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." (*Ibid.*) A court disregards conclusory factual allegations and "draw[s] on its judicial experience and common sense" to determine whether a claim is plausible. (*Id.* at pp. 678-679; see also *Bell Atlantic Corp. v. Twombly* (2007) 550 U.S. 544, 555 [holding "a plaintiff's obligation . . . requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do"]; *Moss v. U.S. Secret Service* (9th Cir. 2009) 572 F.3d 962, 969 [citing *Twombly* and holding the non-conclusory "factual content," and reasonable inferences from that content, must be plausibly suggestive of a claim entitling the plaintiff to relief].)

		At least one district court has adopted instead the standard articulated in <i>Bell v. Hood</i> (1946) 327 U.S. 678, asking whether the alleged claim is “ ‘wholly insubstantial and frivolous’ or ‘appears to be immaterial and made solely for the purpose of obtaining jurisdiction.’ ” (<i>Diaz-Roa v. Hermes Law, P.C.</i> (S.D.N.Y. 2024) 757 F.Supp.3d 498, 542 [Congress intended in passing the EFAA only that “the conduct must be actually alleged and with sufficient specificity that the court is able to determine the law is applicable and that there is a real and nonfrivolous reason to believe that the conduct violates that law against sexual harassment”].) Although this Court is not aware of any published California decision that has definitively adopted a pleading standard, courts have recognized that several federal courts apply the plausibility standard when determining whether a plaintiff has adequately alleged a sexual-harassment dispute within the meaning of the EFAA. (See <i>Liu, supra</i>, 105 Cal.App.5th at pp. 801-802.) In <i>Quilala v. Securitas Security Services USA, Inc.</i> (2025) 117 Cal.App.5th 75, the court applied the plausibility standard without discussing whether it was required. (Id. at pp. 86-87 [concluding, “the trial court correctly determined that [the plaintiff’s] allegations stated a plausible claim of sexual harassment ... bringing the dispute within the scope of the EFAA”].) <i>Allegations in the Complaint</i> Plaintiff has met her burden under either the “plausibility” or “nonfrivolous” pleading standard, as the Complaint sufficiently alleges a claim for harassment based on sex. Plaintiff alleges she was subject to harassment based on her sex and pregnancy. (Compl., ¶ 47.) Plaintiff alleges that a few weeks before she was to start maternity leave, her direct supervisor stated she was not sure they would rehire Plaintiff after her maternity leave, and that “With the newborn, you’re gonna have a lot on her plate.” (Compl. ¶ 17.) Later, at a team meeting, Plaintiff’s supervisor addressed Plaintiff’s pregnancy to all of Plaintiff’s co-workers, and added “Hopefully we don’t see you next
--	--	--

		Monday,” which Plaintiff alleges was an inappropriate way of alluding that Plaintiff’s supervisor was hoping Plaintiff would give birth soon and not be working for Defendants anymore. (Compl. ¶ 20.) Plaintiff also alleges that while Plaintiff was on maternity leave, Plaintiff’s supervisor admitted to one of Plaintiff’s co-workers that Plaintiff “won’t probably be coming back,” which Plaintiff contends confirms that Defendants intended to wrongfully terminate Plaintiff because of Plaintiff’s pregnancy. (Compl. ¶ 23.) When Plaintiff attempted to return after her maternity leave, she was told that there was not enough work and that she was no longer an employee as of the date she left for maternity leave. (Compl. ¶¶ 21-28.) Plaintiff alleges the conduct created a hostile work environment based on her sex, gender, pregnancy, and disability. (Compl., ¶ 36.) Although the allegations may ultimately prove insufficient to prevail on the merits, the Complaint plausibly alleges conduct directed at Plaintiff because of her pregnancy that, viewed collectively, could support a hostile-work-environment claim. At this stage, the Court is not deciding whether Plaintiff will ultimately prevail on her FEHA harassment claims, but only whether the Complaint sufficiently alleges a sexual-harassment dispute within the meaning of the EFAA. The inquiry into whether a working environment is hostile or abusive enough to be actionable is context-specific and often requires a nuanced assessment of the participants’ behavior and interactions that is difficult to undertake at the pleading stage. (<i>See Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 283; see also Gov. Code, § 12923, subd. (e) [“Harassment cases are rarely appropriate for disposition on summary judgment ... [because] hostile working environment cases involve issues ‘not determinable on paper’ ”].) While Defendant argues the EFAA does not apply to FEHA hostile work environment claims premised on pregnancy, California law expressly recognizes harassment based on
--	--	--

		pregnancy as harassment “because of sex.” (Gov. Code, § 12940(j)(4)(C).) Because the EFAA applies to disputes relating to conduct alleged to constitute sexual harassment under applicable state law, Plaintiff’s pregnancy-based harassment allegations fall within the scope of the EFAA. <i>EFAA Applies to All Claims</i> Because Plaintiff has sufficiently alleged a sexual-harassment dispute within the meaning of the EFAA, the arbitration agreement is unenforceable as to the entire action, not merely the harassment claim. (See <i>Liu, supra</i>, 105 Cal.App.5th at pp. 802-807; <i>Doe v. Second Street Corp.</i> (2024) 105 Cal.App.5th 552, 559; <i>Casey v. Superior Court</i> (2025) 108 Cal.App.5th 575, 583; <i>Quilala v. Securitas Security Services USA, Inc.</i> (2025) 117 Cal.App.5th 75, 88-89.) Accordingly, the motion is DENIED. <u>Joinder</u> Defendants Mitchell International, Enlyte Group LLC, and Kelly Sedemund’s motion for joinder is GRANTED. However, the relief requested is DENIED for the same reasons discussed above. <i>Defendant Volt to give notice.</i>
107	Johnson vs. City of Laguna Beach, 24-01383346	Defendant City of Laguna Beach (“Defendant”) moves to compel Plaintiffs Charles William Johnson and Christine Jenna Cilano to appear in California for Orthopedic Independent Medical Examinations. Plaintiff opposes the motion. Pursuant to Code of Civil Procedure section 2032.220, “[i]n any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive. (2) The examination is conducted at a location within 75 miles of the residence of the examinee.” (Code Civ. Proc., § 2032.220, subd. (a).)

		Code of Civil Procedure section 2032.320 carves out an exception to the general rule that the independent medical examination must be conducted at a location within 75 miles of the residence of the examinee. Code of Civil Procedure section 2032.320 states: "(e) If the place of the examination is more than 75 miles from the residence of the person to be examined, an order to submit to it shall be entered only if both of the following conditions are satisfied: (1) The court determines that there is good cause for the travel involved. (2) The order is conditioned on the advancement by the moving party of the reasonable expenses and costs to the examinee for travel to the place of examination." (Code Civ. Proc., § 2032.320, subd. (e).) "[T]he choice of the examining physician generally belongs to the defendant." (<i>Pratt v. Union Pacific Railroad Co.</i> (2008) 168 Cal.App.4th 165, 181 [85 Cal.Rptr.3d 321, 334], as modified (Nov. 19, 2008).) Here, the Court finds good cause for Plaintiffs to submit to their respective independent medical examinations in California. The Court finds the logistics and hurdles of finding and coordinating the medical examinations for out of state examinations with an out of state doctor who is willing to travel to California for expert testimony during trial and related trial preparation establishes good cause for Plaintiffs to submit to their independent medical examinations in California, the forum state. Likewise, the Court finds that an in state examination with an in state and local doctor ensures that the doctor will be available to testify if the case goes to trial. The Court is not persuaded by Plaintiffs' argument that such issues can be cured via video expert testimony because Defendant should be permitted to present its case as it sees fit and not limited to a video testimony instead of an in-person testimony.
--	--	---

		The Court is also persuaded by Dr. Kreitenberg's inability to conduct a medical examination in Vermont since he is not licensed in Vermont. Requiring Defendant to choose an expert in Vermont impedes on Defendant's choice of the examining physician. Again, however, trial will be taking place in California and therefore having a local expert that is readily available for witness testimony in California is sufficient to establish the requisite good cause to conduct the medical examinations in the jurisdiction wherein trial will take place and where the incident occurred. The motion is therefore GRANTED. Plaintiffs shall have the option to stay one or two nights and the expenses and costs shall be as follows: 1. Roundtrip airfare from Vermont to Los Angeles, limited to standard coach or economy seating including one checked bag; 2. Hotel accommodations at a price up to \$250 per day inclusive of taxes/fees, for a maximum of two (2) nights, located within ten (10) miles of either Los Angeles International Airport (LAX) or Dr. Kreitenberg's office; 3. Rental Car (Economy or Compact; not to exceed \$55 a day) between LAX, the hotel, and Dr. Kreitenberg's office. 4. A meal stipend of \$75.00 per Plaintiff per day. <i>Moving party to give notice.</i>
108	Beverly vs. Newport Mesa Riding Center, 23-01338428	Defendant, Sabo Eventing, LLC dba Newport Mesa Riding Center ("Defendant" or "Sabo Eventing"), moves for an order compelling Plaintiff, Madison Beverly, by and through her guardian ad litem, Michael Beverly ("Plaintiff" or "Madison"), to arbitrate this dispute and for an order staying the present action pending the outcome of the arbitration. On September 30, 2024, this Court denied Defendant's motion to compel arbitration.

	(ROA 127, 128.) On November 19, 2024, Defendant filed an appeal, and on February 10, 2026, the Court of Appeal reversed and remanded the denial of the motion to compel arbitration with directions to consider and rule on Plaintiff Madison Beverly's waiver argument, which was not previously decided by this Court. (ROA 205.) The Court of Appeal concluded that Plaintiff's mother, Jennifer Beverly, executed the Waiver Agreement containing an arbitration provision on behalf of herself and Plaintiff, and found that Plaintiff could not disaffirm the arbitration provision under Family Code section 6710. Pursuant to the instruction of the Court of Appeal to consider and rule on Plaintiff's argument that Defendant waived its ability to compel arbitration, the Court now considers whether there was waiver. With regards to the issue of waiver, Defendant contends that it has timely asserted its right to arbitration and has not waived such right as the "litigation machinery" in this action has not been substantially invoked, and Defendant's actions are consistent with the right to arbitrate Defendant argues that it appeared in this action in November 2023; that trial is scheduled on June 23, 2025; that Defendant requested Plaintiff stipulate to arbitrate the dispute approximately 2 months after appearing in the action and more than a year and half before trial; that Defendant withdrew discovery propounded on Plaintiff and has not answered any discovery; and that no depositions have been taken. Plaintiff contends that even if an arbitration provision existed and was enforceable, Defendant waived its right to compel arbitration, that Defendant's conduct at the outset of this litigation was inconsistent with their intent to arbitrate, that Defendant delayed in the bringing this motion while it invoked the litigation machinery and initiated discovery, and that the parties are already deep into the litigation process. Plaintiff further contends that she would be severely prejudiced by moving this case to arbitration at this point in the litigation where Plaintiff has already responded to and propounded
--	--

	discovery and engaged in motion practice, which are all efforts that would be duplicated in arbitration, as well as where Plaintiff, as a minor, is entitled to trial preference here which she is not guaranteed in arbitration. "[I]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract. [Citation.]" (<i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 583 ("Quach").) "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. [Citations.]" (<i>Quach, supra</i>, 16 Cal.5th at p. 584.) "Under the clear and convincing evidence standard, the proponent of a fact must show that it is 'highly probable' the fact is true. [Citation.] The waiving party's knowledge of the right may be 'actual or constructive.' [Citation.]" (<i>Ibid.</i>) "Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it. [Citation.]" (<i>Ibid.</i>) "The waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant. [Citations.]" (<i>Id.</i> at p. 585) "This distinguishes waiver from the related defense of estoppel, 'which generally requires a showing that a party's words or acts have induced detrimental reliance by the opposing party.' [Citations.]" (<i>Ibid.</i>) "To establish waiver, there is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show
--	--

		harm resulting from the waiving party's conduct. [Citations.]" (<i>Ibid.</i>) Based on the foregoing, the first question is whether the evidence submitted shows by clear and convincing evidence that Defendant was actually or constructively aware of its right to compel arbitration. The only evidence submitted by Plaintiff to support that Defendant had actual or constructive knowledge of the right to arbitration is Plaintiff's counsel declaration. Plaintiff's counsel's declaration states, in part: "I gave notice of Plaintiff's claim prior to December 21, 2022 and engaged in pre-litigation discussion with opposing counsel Gary Wolensky when the alleged waiver and arbitration was referenced during the parties January 19, 2023 call, nearly a year before Defendant's moving papers suggest it was discovered." (ROA 87, Declaration of Puneet K. Toor ("Toor Decl."), ¶ 2.) In reply, Defendant's counsel submits a declaration which states, in part: "On or about January 19, 2023, I spoke with counsel for the Plaintiff, Puneet Toor. This call was solely in regarding [sic] to a settlement demand made by Plaintiff to Defendant. No mention of a waiver or arbitration issues were raised or discussed during this telephone call." (ROA 94, Declaration of Gary A. Wolensky, ¶ 2.) Attorney Wolensky also states, "Defendant had no notice or knowledge of any waiver or arbitration agreement at the time of the above-described January 19, 2023, telephone conversation." (Id., ¶ 3.) The evidence submitted does not show by clear and convincing evidence that Sabo Eventing had actual or constructive knowledge of its right to compel arbitration at any time prior to January 12, 2024, when Defendant's counsel provides they reviewed the arbitration provision in the Agreement. (ROA 52, Declaration of Tamara M. Rowles ("Rowles Decl."), ¶ 6.) In light of the above, Defendant's failure to assert a right to arbitrate in its Answer filed on or about November 8, 2023, and any
--	--	---

	omission in Defendant's Case Management Statement filed for the Case Management Conference then-set for December 14, 2023, are consistent with a lack of knowledge of the arbitration provision before January 12, 2024. (Rowles Decl., ¶ 5; Toor Decl., ¶ 4, Ex. C.) Additionally, the evidence indicates that once Sabo Eventing became aware of its right to arbitrate, it sought to cease litigation activities in this case. While Sabo Eventing may have served "a full set of written discovery" on Plaintiff on December 14, 2023, counsel for Sabo Eventing provides that after reviewing the arbitration provision in the Agreement on January 12, 2024, they reached out to Plaintiff's counsel to request a stipulation to stay this action and to arbitrate the dispute with JAMS pursuant to the Agreement, as well as informed Plaintiff's counsel that Defendant withdrew the discovery previously served on Plaintiff, which had not yet been answered. (Toor Decl., ¶ 6, Ex. D; Rowles Decl., ¶¶ 6-7, Ex. B.) Defendant's counsel also provides that they continued to meet and confer with Plaintiff's counsel regarding the proposed stipulation to arbitrate this dispute and sent a letter to Plaintiff's counsel on January 22, 2024, regarding the enforceability of the Agreement, but that Plaintiff's counsel never provided a response to this correspondence, and instead, served Plaintiff's response to Defendant's previously withdrawn discovery on January 29, 2024. (Rowles Decl., ¶¶ 8-9, Ex. C.) To the extent that subsequent to the instant motion being filed, Plaintiff propounded discovery and noticed a deposition, Defendant provided only a blanket objection to the discovery requests in light of the then-pending motion to compel arbitration. (ROA 90, Declaration of Rachel W. Halbasch, ¶¶ 4-5.) The reply further confirms that Defendant has not engaged in any discovery since the filing of the motion to compel arbitration, and that the only discovery that had been propounded by Defendant was withdrawn, as well as that no depositions have taken place. (Id., ¶¶ 9-10.) The above evidence demonstrates that once Sabo Eventing was aware of the arbitration
--	---

	provision in the Agreement in January 2024, it immediately sought to cease discovery activities in this action and asserted its right to arbitrate. Based on the foregoing, Plaintiff has not met her burden of showing by clear and convincing evidence that Sabo Eventing knew of the contractual right to arbitrate and intentionally relinquished it thereby waiving its right to arbitrate. Sabo Eventing's motion to compel arbitration is GRANTED. The Court STAYS the action pending completion of arbitration. (Code Civ. Proc. § 1281.4.) The Court sets an ADR Review hearing for January 28, 2027 at 1:30 p.m. <i>Sabo Eventing to give notice.</i>
--	--